

BOARD OF SUPERVISORS MINUTES

August 27, 2025

2 p.m. Work Session - Administration Building, Room 502

A video recording of this meeting may be viewed at
<https://www.chesterfield.gov/244/Agendas-and-Minutes>.

Supervisors in Attendance:

Mr. James A. Ingle, Jr., Chair

Dr. Mark S. Miller, Vice Chair

Ms. Jessica L. Schneider

Mr. James M. Holland

Mr. Kevin P. Carroll

Dr. Joseph P. Casey

County Administrator

Mr. Ingle called the meeting to order at 2 p.m. He announced that Mr. Holland requested to participate in the meeting remotely from his home due to a medical condition, and he granted Mr. Holland's request. Mr. Holland was then connected to the meeting.

1. Approval of Minutes

On motion of Dr. Miller, seconded by Ms. Schneider, the Board approved the minutes of the July 23, 2025, Board of Supervisors meeting and Congresswoman McClellan's July 30, 2025, Town Hall.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

2. Requests to Postpone Agenda Items and Additions, Deletions or Changes in the Order of Presentation

There were no requests to postpone agenda items and additions, deletions or changes in the order of presentation.

3. Everyday Excellence - Planning

Deputy County Administrator Jesse Smith introduced Curel Sundar, Brett Meadows, Catherine Herlig, Daniel Longest, Cherie Wyatt, and Jessica Baker, all of whom were part of the team behind the Zoning Ordinance Modernization (ZOMod) conversion mapping tool. He stated the tool was a huge cost savings and part of a big effort to improve transparency and communications with residents about a topic which is not the easiest to understand.

Board members expressed appreciation to the team for their hard work on the mapping tool and for helping residents better understand the ZOMod project.

4. Work Sessions

A. Zoning Ordinance Modernization (ZOMod) Project

Planning Director Andy Gillies, accompanied by staff members Rachel Chieppa, Steve Haasch, and Thomas Jenkins, provided the Board with an update on the ZOMod Project.

Discussion and questions ensued relative to the information provided during the presentation.

B. Draft 2026 Legislative Program

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Intergovernmental Relations Director Natalie Spillman provided the Board with an overview of the draft 2026 Legislative Program.

Discussion and questions ensued relative to the information provided during the presentation.

C. Consent Agenda Highlights

Deputy County Administrator Matt Harris provided details of various consent agenda items on the evening agenda.

5. Reports

A. Chesterfield County Fire & EMS Community Risk Assessment and Standards of Cover Document and Strategic Plan, FY2026-FY2030

The Board approved Chesterfield County Fire & EMS Community Risk Assessment and Standards of Cover Document and Strategic Plan, FY2026-FY2030.

B. Reports on the Status of District Improvement Operating and Capital Funds, General Fund Unassigned Balance and Debt Policy Ratios, and Investments

The Board approved the Reports on the Status of District Improvement Operating and Capital Funds, General Fund Unassigned Balance and Debt Policy Ratios, and Investments.

6. Fifteen-Minute Citizen Comment Period on Unscheduled Matters

There were no speakers on unscheduled matters at this time.

7. Closed Session

A. Pursuant to § 2.2-3711(A)(5), Code of Virginia, 1950, as Amended, 1) to Discuss or Consider Prospective Businesses or Industries or the Expansion of Existing Businesses or Industries Where no Previous Announcement Has Been Made of the Businesses' or Industries' Interest in Locating or Expanding Their Facilities in the Community, 2) Pursuant to § 2.2-3711(A)(3), Code of Virginia, 1950, as Amended, to Discuss the Acquisition by the County of Real Estate for a Public Purpose, or the Disposition of Publicly Held Real Property, Where Discussion in an Open Meeting Would Adversely Affect the Bargaining Position and Negotiating Strategy of the Public Body, and 3) Pursuant to 2.2-3711(A)(1), Code of Virginia, 1950, as Amended, Relating to the Performance of the County Administrator

On motion of Dr. Miller, seconded by Ms. Schneider, the Board went into closed session Pursuant to § 2.2-3711(A)(5), Code of Virginia, 1950, as Amended, 1) to Discuss or Consider Prospective Businesses or Industries or the Expansion of Existing Businesses or Industries Where no Previous Announcement Has Been Made of the Businesses' or Industries' Interest in Locating or Expanding Their Facilities in the Community, 2) Pursuant to § 2.2-3711(A)(3), Code of Virginia, 1950, as Amended, to Discuss the Acquisition by the County of Real Estate for a Public Purpose, or the Disposition of Publicly Held Real Property, Where Discussion in an Open Meeting Would Adversely Affect the Bargaining Position and Negotiating Strategy of the Public Body, and 3) Pursuant to 2.2-3711(A)(1), Code of Virginia, 1950, as Amended, Relating to the Performance of the County Administrator.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

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Nays: None.

Reconvening:

On motion of Ms. Schneider, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, the Board of Supervisors has this day adjourned into Closed Session in accordance with a formal vote of the Board and in accordance with the provisions of the Virginia Freedom of Information Act; and

WHEREAS, the Virginia Freedom of Information Act effective July 1, 1989 provides for certification that such Closed Session was conducted in conformity with law.

NOW, THEREFORE BE IT RESOLVED, the Board of Supervisors does hereby certify that to the best of each member's knowledge, i) only public business matters lawfully exempted from open meeting requirements under the Freedom of Information Act were discussed in Closed Session to which this certification applies, and ii) only such business matters were identified in the motion by which the Closed Session was convened were heard, discussed or considered by the Board. No member dissents from this certification.

Ms. Schneider: Aye.

Mr. Holland: Aye.

Mr. Carroll: Aye.

Dr. Miller: Aye.

Mr. Ingle: Aye.

8. Recess for Dinner

On motion of Dr. Miller, seconded by Mr. Carroll, the Board recessed for dinner in Room 502.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

6 p.m. Evening Session - Public Meeting Room, 10001 Iron Bridge Road

Reconvening:

Mr. Ingle announced that Mr. Holland requested to participate in the meeting remotely from his home due to a medical condition, and he granted Mr. Holland's request. Mr. Holland was then connected to the meeting.

9. Invocation by the Honorable Kevin P. Carroll, Matoaca District Supervisor

The Honorable Kevin P. Carroll, Matoaca District Supervisor, gave the invocation.

10. Pledge of Allegiance Led by Eagle Scout Beckett Alexander Pemberton Thorp

Eagle Scout Beckett Thorp led the Pledge of Allegiance.

11. County Administration Update

The County Administration Update included the following:

- An announcement by Amber Tillman, head of Google Data Center for Public Affairs of North America, that Google is the entity behind Project Peanut. She also announced Project Loch (Aeris) and Project Skye (Skyward) are also Google.

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- An Election Day readiness update provided by General Registrar and Director of Elections Missy Vera;
- An announcement of the county receiving six Virginia Association of Counties (VACo) Achievement Awards;
- An announcement of the Juvenile Detention Center achieving 100-percent compliance with over 350 regulations on its three-year audit; and
- An announcement of the 2nd annual Regional Recovery Day, hosted by Henrico, Chesterfield, Hanover, and Richmond, on Sept. 3, 2025, at the Henrico Sports and Events Center from 4:30 until 8:30 p.m.

12. Board Member Reports

Board members announced and provided details of several community meetings and county-related events they attended recently.

13. Resolutions and Special Recognitions

A. Resolution Recognizing Boy Scout Upon Attaining Rank of Eagle Scout

Director of Constituent and Media Services Dave Goode introduced Eagle Scout Beckett Thorp, who was present to receive the resolution.

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, the Boy Scouts of America was incorporated by Mr. William D. Boyce on February 8, 1910, and was chartered by Congress in 1916; and

WHEREAS, the Boy Scouts of America was founded to build character, provide citizenship training and promote physical fitness; and

WHEREAS, after earning at least 21 merit badges in a wide variety of skills including leadership, service and outdoor life, serving in a leadership position in a troop, carrying out a service project beneficial to their community, being active in the troop, demonstrating Scout spirit, and living up to the Scout Oath and Law, Mr. Beckett Alexander Pemberton Thorp, of Troop 400, sponsored by Saint James' Episcopal Church, has accomplished those high standards of commitment and has reached the long-sought goal of Eagle Scout, which is received by only four percent of those individuals entering the Scouting movement; and

WHEREAS, growing through his experiences in Scouting, learning the lessons of responsible citizenship, and endeavoring to prepare himself for a role as a leader in society, Beckett has distinguished himself as a member of a new generation of prepared young citizens of whom we can all be very proud.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors, this 27th day of August 2025, publicly recognizes Mr. Beckett Alexander Pemberton Thorp, extends congratulations on his attainment of Eagle Scout, and acknowledges the good fortune of the county to have such an outstanding young man as its citizen.

Mr. Thorp shared details about his Eagle Scout project, which was a shelter benefitting the Appalachian Great Pyrenees Rescue Society.

Dr. Miller congratulated Mr. Thorp for a job well done.

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Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

B. Recognition of 2025 National Association of Counties (NACo) Achievement Award Winners

The Board recognized the recipients of 2025 National Association of Counties (NACo Achievement Awards).

14. New Business

A. Appointments

1. Health Center Commission (HCC) for the County of Chesterfield

On motion of Dr. Miller, seconded by Mr. Carroll, the Board nominated/appointed Donald Gibson, Matoaca District, to serve as an at-large representative on the Health Center Commission (HCC) for the County of Chesterfield, whose term is effective September 1, 2025, and will expire June 30, 2029.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

2. Towing Advisory Board

On motion of Mr. Holland, seconded by Ms. Schneider, the Board nominated/reappointed Eagle Towing representative Nicole Eagle (Matoaca District), Coastal Towing representative Rhonda Lee (non-county resident), and at-large citizen representative Mirelys Corsoro (Clover Hill District) to serve on the Towing Advisory Board, whose terms are effective September 1, 2025, and will expire August 31, 2028.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

3. Youth Advisory Board

On motion of Ms. Schneider, seconded by Dr. Miller, the Board nominated and appointed the following individuals as members of the Youth Advisory Board:

Bermuda District:

- Fionn Bockford, 11th grade, (Term: 9/1/2025-6/30/2027)
- Amaya Magee, 12th grade, (Term: 9/1/2025-6/30/2026)

Clover Hill District:

- Henock Nebiyu, 11th grade, (Term: 9/1/2025-6/30/2027)
- Margeaux Jean Amentt-Pierson, 11th grade (Term: 9/1/2025-6/30/2027)

Dale District:

- Piya Patel, 11th grade, (Term: 9/1/2025-6/30/2027)
- Sebastian St. Fleur, 11th grade, (Term: 9/1/2025-6/30/2027)

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- Alishba Siddiq, 12th grade, (Term; 9/1/2025-6/30-2026)
- Bianca Monje, 12th grade, (Term: 9/1/2025-6/30/2026)

Matoaca District:

- Joseph Carter, 11th grade, (Term: 9/1/2025-6/30/2027)
- Karrington Ross, 11th grade, (Term: 9/1/2025-6/30/2027)

Midlothian District:

- Madison Jones, 11th grade, (Term: 9/1/2025-6/30/2027)
- Keira West, 11th grade, (Term: 9/1/2025-6/30/2027)
- Lily Hudson, 12th grade, (Term: 9/1/2025 – 6/30/2026)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

4. Parks and Recreation Advisory Commission

On motion of Dr. Miller, seconded by Ms. Schneider, the Board nominated/appointed Patrice Jones to serve as a Dale District commissioner and Daniel Larsen to serve as a Clover Hill District commissioner on the Parks and Recreation Advisory Commission, whose terms are effective August 28, 2025, and will expire December 31, 2027.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

B. Consent Items (14.B.1.-14.B.11.)

1. Adoption of Resolutions

a. Resolution Recognizing Mr. Ted Barclay, Community Enhancement, Upon His retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Mr. Ted Barclay began his career with Chesterfield County in 1988 as an intern with the Planning Department; and

WHEREAS, through hard work and determination, Mr. Barclay rose through the ranks and attained the position of Zoning Inspector in 1989, Senior Zoning Inspector in 1992, Code Compliance supervisor in 2000, Planning Administrator in 2011 and Special Projects Manager in 2021; and

WHEREAS, in 1992, Mr. Barclay earned certification from the Virginia Certified Boards of Zoning Appeals and began longstanding service with Chesterfield's Board of Zoning Appeals, becoming the Secretary to the Board in 2012; and

WHEREAS, in 1995, Mr. Barclay was awarded the title of Certified Zoning Inspector through the Virginia Association of Zoning Officials. Mr. Barclay was recognized on multiple occasions by his supervisors and peers for his

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contributions and positive attitude, and his willingness to take on special projects crucial to department success even if they were outside of his normal responsibilities; and

WHEREAS, Mr. Barclay's work in code enforcement, especially in the county's manufactured home communities, demonstrates his commitment to improving the health, welfare and safety of the county's residents; and

WHEREAS, Mr. Barclay's dedication and tenacity led to the development of the illegal sign removal program in 2004 and the removal of more than 115,000 illegal signs from the county's medians and rights of way; and

WHEREAS, since 2021, Mr. Barclay led the County's effort to replace aging streetlights with newer versions, saving energy and creating efficiencies that will halve the county's streetlight costs; and

WHEREAS, Mr. Barclay will be sorely missed for his hard work, his friendliness, his willingness to share his knowledge with others and his faithful service and dedication to serving our citizens.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes Mr. Ted Barclay for his 37 years of exemplary service to the residents of Chesterfield County, and conveys to Mr. Barclay best wishes for a long, happy, healthy, and fulfilling retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- b. Resolution Recognizing Sergeant Jeffery W. Barthlow, Police Department, Upon His Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Sergeant Jeffery W. Barthlow retired from the Chesterfield County Police Department on August 1, 2025, after providing over 28 years of quality service to the residents of Chesterfield County; and

WHEREAS, Sergeant Barthlow began his career with the Chesterfield Police Department as a Police Recruit and faithfully served the county as a Police Officer, Senior Police Officer, Master Police Officer, Career Police Officer, Corporal Police Officer and Sergeant; and

WHEREAS, Sergeant Barthlow also served during his tenure as a Firearms Instructor, General Instructor, Field Training Officer; and

WHEREAS, Sergeant Barthlow was presented with a Meritorious Service Award for his exceptional performance during numerous critical incidents and high risk warrant services as a member of the Special Weapons And Tactics Team; and

WHEREAS, Sergeant Barthlow was presented with the Chief's Award for Excellence for his efforts in developing an officer wellness class, in which he advocated for mental and emotional health, discussing avenues to prevent or reduce the chances of officers suffering from a variety of issues related to such and embracing the power of positive resilience and collectively elevating and supporting others; and

WHEREAS, Sergeant Barthlow was presented with a Unit Citation as a member of the Police Emergency Response Team for successfully completing

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and excelling in a national level training program, with the Hostage Negotiations Team receiving national and state recognition for its working relationship with the Chesterfield County Mental Health Department; and

WHEREAS, Sergeant Barthlow was presented with a Unit Citation and an Achievement Award for his service with the Fugitive Section and working with the U.S. Marshal's Regional Fugitive Task Force, with the Unit collectively clearing 3,792 warrants in two calendar years; and

WHEREAS, Sergeant Barthlow was presented with a Unit Citation as a member of the Honor Guard and their handling of the tragic line of duty death of a Chesterfield County police officer and assisting with arrangements to ensure the services were professional in all aspects; and

WHEREAS, Sergeant Barthlow is recognized for his strong work ethic, communication and human relations skills, his dedication to strengthening the knowledge, skills and abilities of his colleagues, and maintaining a magnificently positive attitude; and

WHEREAS, Sergeant Barthlow has provided the Chesterfield County Police Department with many years of loyal and dedicated service; and

WHEREAS, Chesterfield County and the Board of Supervisors will miss Sergeant Barthlow's diligent service.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes Sergeant Jeffery W. Barthlow and extends on behalf of its members and the residents of Chesterfield County, appreciation for his service to the county, congratulations upon his retirement, and best wishes for a long and happy retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- c. Resolution Recognizing Captain Anthony W. Batten, Fire and Emergency Medical Services Department, Upon His Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Captain Anthony W. Batten retired from Chesterfield Fire and Emergency Medical Services, Chesterfield County, on August 1, 2025; and

WHEREAS, Captain Batten completed Recruit School #29 in 2000 and faithfully served the residents of Chesterfield County for 25 years in various assignments as a firefighter at the Dale, Winterpock, Buford and Dutch Gap Fire Stations; a lieutenant at the Bensley, Centralia and the Manchester Fire Stations; and a captain at the Ettrick and Bensley Fire Stations; and

WHEREAS, Captain Batten also served for 10 years in the Fire & Life Safety Division as a captain and deputy fire marshal; and

WHEREAS, Captain Batten reviewed over 5,000 site plans, over 5,000 subdivision plans, and over 2,400 zoning cases during his tenure in the Fire & Life Safety Division; and

WHEREAS, Captain Batten's plan reviews have assisted with economic development of the county while ensuring the safety of its residents and public safety responders; and

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WHEREAS, Captain Batten served 19 years as a Nationally Registered Paramedic; and

WHEREAS, Captain Batten served 10 years as a member of the Technical Rescue Team; and

WHEREAS, Captain Batten was awarded a Unit Citation Award for his involvement in the successful outcome of three patients involved in a vehicle accident on February 1, 2005; and

WHEREAS, Captain Batten was awarded a Unit Citation Award for his involvement in the successful outcome of a thirteen-year-old that was trapped under a tree that had fallen into a house on September 25, 2006; and

WHEREAS, Captain Batten was awarded a Unit Citation Award for his involvement in the successful outcome of a patient trapped under a vehicle on June 14, 2014.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes the contributions of Captain Anthony W. Batten, expresses their appreciation on behalf of the residents for his dedicated service, and extends their congratulations upon his retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- d. Resolution Recognizing Firefighter Steven C. White, Fire and Emergency Medical Services Department, Upon His Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Firefighter Steven C. White retired from the Chesterfield Fire and Emergency Medical Services Department, Chesterfield County, on August 1, 2025; and

WHEREAS, Firefighter White has faithfully served the residents of Chesterfield County for 34 years, first as a volunteer firefighter at the Chester Fire Station beginning in 1991 and then completing Career Recruit School #37 in 2005; and

WHEREAS, Firefighter White has served in various assignments including the Chester, Courthouse, Rivers Bend, Bon Air, Ettrick, and Manchester Fire and EMS Stations; and

WHEREAS, Firefighter White served multiple years as a member of the Training and Education Division as an Adjunct Instructor for volunteer and career recruit schools, in-service, and EMS training; and

WHEREAS, Firefighter White served as a self-contained breathing apparatus (SCBA) technician assisting with SCBA repairs and fit testing; and

WHEREAS, Firefighter White served as a hose and nozzle technician assisting with purchasing, testing, and repairs of the organization's hose and nozzle inventory; and

WHEREAS, Firefighter White served as a certified sewing technician assisting with maintenance and repairs of the organization's structural firefighting gear inventory; and

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WHEREAS, Firefighter White held multiple apparatus and heavy equipment operator certifications that served the organization in emergent and non-emergent operations; and

WHEREAS, Firefighter White served multiple years as a member of the staff responsible for testing new firefighter candidates; and

WHEREAS, Firefighter White was recognized in 2018 with an EMS Unit Lifesave Award for his efforts in assisting a patient who went into cardiac arrest.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes the contributions of Firefighter Steven C. White, expresses the appreciation of all residents for his service to the county, and extends their appreciation for his dedicated service and their congratulations upon his retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- e. Resolution Recognizing Ms. Melanie J. Callahan, Emergency Communications, Upon Her Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Ms. Melanie J. Callahan began her public service with the County as a Fire Dispatcher on March 8, 1999, in the Emergency Communications Center, and faithfully served Chesterfield County for over 26 years until September 1, 2025; and

WHEREAS, Ms. Callahan was able to adapt to the ever-changing environment and growth within Chesterfield County and the Emergency Communications Center including upgrades of the enhanced 9-1-1 system and call handling equipment, the County's Public Safety Radio System, two Computer-Aided Dispatch Systems, Emergency Medical Dispatch Protocols and other technological advances throughout her career; and

WHEREAS, Ms. Callahan has significantly impacted Emergency Communications by serving in multiple positions during her career to include Dispatcher and Communications Training Officer; and

WHEREAS, Ms. Callahan served on multiple committees during her career to include the CFEMS Yearbook Committee in 2005 and 2010, the ECC Scheduling Committee, and the ECC Kitchen Remodel Committee; and

WHEREAS, Ms. Callahan was given a life-save award in 2021 and a Commendation Letter from the Director of the FBI Terrorist Screening Center; and

WHEREAS, Ms. Callahan has displayed a helpful, courteous, and caring attitude while working with internal and external customers by providing a high level of commitment to her work performance as a thorough and conscientious employee; and

WHEREAS, Ms. Callahan has provided the Emergency Communications Center and Chesterfield County with many years of loyal and dedicated service; and

WHEREAS, Chesterfield County and the Board of Supervisors thank Ms.

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Callahan for her diligent service.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes Ms. Melanie J. Callahan and extends on behalf of its members and the residents of Chesterfield County, appreciation for over 26 years of exceptional service to the county.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- f. Resolution Recognizing Mr. Timothy M. Anders, Department of General Services, Fleet Division, Upon His Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Mr. Timothy M. Anders retired from the Chesterfield County Department of General Services Fleet Division on August 1, 2025; and

WHEREAS, on June 23, 2003, Mr. Anders began his public service career with Chesterfield County as a full-time Maintenance Worker in the Parks and Recreation Department; and

WHEREAS, in October 2005 Mr. Anders was promoted to an Automotive Technician in the Department of General Services; and

WHEREAS, in June 2008 through reorganization Mr. Anders' title changed to School Bus Technician; and

WHEREAS, in December 2019 Mr. Anders' position was reclassified to a Sr. School Bus Technician due to his increased knowledge, skills, and abilities; and

WHEREAS, in 2020 during the COVID pandemic Mr. Anders' was an inspiration to those around because of his pleasant smile and cheerful personality; and

WHEREAS, Mr. Anders' superior work ethic was second to none, along with his unwavering customer service and willingness to assist co-workers and share his mechanical knowledge when needed; and

WHEREAS, Mr. Anders went the extra mile to ensure customer satisfaction, as it was at the top of his list; and

WHEREAS, Mr. Anders used open communication and safety awareness guidelines to perform timely and high quality repairs; and

WHEREAS, Mr. Anders will be missed by his co-workers and customers.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes the outstanding contributions of Mr. Timothy M. Anders, expresses the appreciation of all citizens for his service to Chesterfield County, and extends appreciation for his dedicated service to the County, congratulations upon his retirement, and best wishes for a long and happy retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

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- g. Resolution Recognizing Mr. Terry L. Kenyon, Department of General Services, Buildings and Grounds Division, Upon His Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Mr. Terry L. Kenyon retired from the Chesterfield County Department of General Services Buildings and Grounds Division on August 1, 2025; and

WHEREAS, Mr. Kenyon joined the Buildings and Grounds team as a temporary employee during a staffing shortage in the Carpentry/Paint Shop; and

WHEREAS, Mr. Kenyon showed a genuine interest in the carpentry trade and had an outstanding work ethic; and

WHEREAS, Mr. Kenyon was hired as a County employee on March 12, 2007 as a Carpenter Trades Assistant in Buildings and Grounds Division; and

WHEREAS, Mr. Kenyon began assisting in the Paint Shop and volunteered to take on the paint work orders to maintain the continuity of service to customers; and

WHEREAS, Mr. Kenyon not only completed new work orders as they came in but also assisted the shop in catching up on the backlog of pending projects; and

WHEREAS, Mr. Kenyon was reclassified in 2013 to Painter where he worked for more than 11 years; and

WHEREAS, Mr. Kenyon performed his duties and responsibilities in an efficient manner and assisted with multiple safety enhancement painting projects at the Convenience Centers; and

WHEREAS, Mr. Kenyon will be missed by his fellow co-workers.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes the outstanding contributions of Mr. Terry L. Kenyon, expresses the appreciation of all residents for his service to Chesterfield County, and extends appreciation for his dedicated service to the County and congratulations upon his retirement, as well as best wishes for a long and happy retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- h. Resolution Recognizing Captain Steven P. Grohowski, Police Department, Upon His Retirement

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, Captain Steven P. Grohowski retired from the Chesterfield County Police Department on August 1, 2025, after providing over 30 years of quality service to the residents of Chesterfield County; and

WHEREAS, Captain Grohowski began his career path as a recruit in 1994 and continued to faithfully serve as a Police Officer, Detective, Senior Detective,

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Sergeant, Lieutenant and Captain; and

WHEREAS, during his tenure, Captain Grohowski also served as a Field Training Officer, General Instructor and Firearms Instructor; and

WHEREAS, Captain Grohowski received the Meritorious Service Award and a Unit Citation for his nearly three decades of service on the Special Response Unit, overseeing the expansion from 36 to 50 members and developing large-scale training scenarios to ensure that the team was fully prepared for all contingencies; and

WHEREAS, Captain Grohowski was presented with a Unit Citation as a member of the Special Response Unit, being tasked with a variety of missions including civil disturbance responses, search and rescue, demonstrating an unwavering dedication to duty; and

WHEREAS, Captain Grohowski was presented with four Unit Citations for his successful tenure in several investigative units, combatting community issues such as addiction, drug trafficking and manufacturing as well as theft, larceny and vandalism, and being recognized for his role in the formation and success of the Larceny and Heroin Investigation Group with Achievement Awards being received from the Virginia Associations of Counties as well as the National Associations of Counties; and

WHEREAS, Captain Grohowski earned three Chief's Commendation Awards during his tenure, one for tracing the supplier of a fatal drug overdose and obtaining a felony arrest warrant, and two others reflecting his ability to implement successful changes during the reorganization of a 30 year old Police district structure and also critical changes implemented during the COVID pandemic to ensure all officers remained informed, protected and safe; and

WHEREAS, Captain Grohowski earned the National Service Award for his participation in leading 19 officers to Charlotte, North Carolina for the 2012 Democratic National Convention; and

WHEREAS, Captain Grohowski led and participated in Bike for the Blue, a memorial ride spanning 113 miles in collaboration with Richmond Police and Virginia State Police; and

WHEREAS, Chesterfield County and the Board of Supervisors will miss Captain Grohowski's diligent service.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes Captain Steven P. Grohowski and extends on behalf of its members and the residents of Chesterfield County, appreciation for his service to the county, congratulations upon his retirement, and best wishes for a long and happy retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- i. Resolution Approving Participation in Proposed Settlement of Opioid-Related Claims

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

A RESOLUTION OF THE CHESTERFIELD COUNTY BOARD OF SUPERVISORS APPROVING OF THE COUNTY'S PARTICIPATION IN THE PROPOSED SETTLEMENTS OF OPIOID-RELATED CLAIMS

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AGAINST ALVOGEN, AMNEAL, APOTEX, HIKMA, INDIVIOR, MYLAN, SUN, AND ZYDUS AND THEIR RELATED CORPORATE ENTITIES, AND DIRECTING THE COUNTY ATTORNEY AND/OR THE COUNTY'S OUTSIDE COUNSEL TO EXECUTE THE DOCUMENTS NECESSARY TO EFFECTUATE THE COUNTY'S PARTICIPATION IN THE SETTLEMENTS

WHEREAS, the opioid epidemic that has cost thousands of human lives across the country also impacts Chesterfield County by adversely impacting the delivery of emergency medical, law enforcement, criminal justice, mental health and substance abuse services, and other services by Chesterfield County's various departments and agencies; and

WHEREAS, Chesterfield County has been required and will continue to be required to allocate substantial taxpayer dollars, resources, staff energy and time to address the damage the opioid epidemic has caused and continues to cause the citizens of Chesterfield County; and

WHEREAS, eight settlement proposals have been negotiated that will cause eight opioids manufacturers, Alvogen, Inc., Amneal Pharmaceuticals, Inc., Apotex Corp, Hikma Pharmaceuticals USA, Inc., Indivior Inc., Mylan Pharmaceuticals Inc, Sun Pharmaceutical Industries, Inc., and Zydus Pharmaceuticals (USA) Inc. (collectively the "Manufacturers") to pay approximately \$720 million nationwide to resolve opioid-related claims against it; and

WHEREAS, Chesterfield County has filed suit against certain of the manufacturers and their related corporate entities for their role in the distribution, manufacture, and sale of the pharmaceutical opioid products that have fueled the opioid epidemic that has harmed Chesterfield County; and

WHEREAS, Chesterfield County's suit seeks recovery of the public funds previously expended and to be expended in the future to abate the consequences and harms of the opioid epidemic; and

WHEREAS, Chesterfield County has approved and adopted the Virginia Opioid Abatement Fund and Settlement Allocation Memorandum of Understanding (the "Virginia MOU"), and affirms that these pending settlements with the Manufacturers shall be considered a "Settlement" that is subject to the Virginia MOU, and shall be administered and allocated in the same manner as the opioid settlements entered into previously with the Distributors, Janssen, Teva, Allergan, Walmart, CVS, Walgreens, and Kroger; and

WHEREAS, Chesterfield County's outside opioid litigation counsel has recommended that the County participate in the eight settlements in order to recover its share of the funds that the Manufacturers settlements would provide; and

WHEREAS, the County Attorney has reviewed the available information about the proposed settlements and concurs with the recommendation of outside counsel; and

NOW THEREFORE BE IT RESOLVED that the Chesterfield County Board of Supervisors, this 27th day of August, 2025, approves of the County's participation in the proposed settlements of opioid-related claims against the Manufacturers and their related corporate entities, and directs the County Attorney and/or the County's outside counsel to execute the documents necessary to effectuate the County's participation in the settlements, including the required release of claims against the Manufacturers.

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Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- j. Resolution Accepting Purdue Pharma Bankruptcy Plan and Approving Participation in Proposed Settlement of Opioid-Related Claims

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

A RESOLUTION OF THE CHESTERFIELD COUNTY BOARD OF SUPERVISORS ACCEPTING THE PURDUE PHARMA BANKRUPTCY PLAN AND APPROVING OF THE COUNTY'S PARTICIPATION IN THE PROPOSED DIRECT SETTLEMENT OF OPIOID-RELATED CLAIMS AGAINST THE SACKLER FAMILY, AND DIRECTING THE COUNTY'S OUTSIDE COUNSEL TO EXECUTE THE DOCUMENTS NECESSARY TO ACCEPT THE PLAN AND EFFECTUATE THE COUNTY'S PARTICIPATION IN THE SETTLEMENT

WHEREAS, the opioid epidemic that has cost thousands of human lives across the country also impacts Chesterfield County by adversely impacting the delivery of emergency medical, law enforcement, criminal justice, mental health and substance abuse services, and other services Chesterfield County's various departments and agencies; and

WHEREAS, Chesterfield County has been required and will continue to be required to allocate substantial taxpayer dollars, resources, staff energy and time to address the damage the opioid epidemic has caused and continues to cause the citizens of Chesterfield County; and

WHEREAS, a settlement proposal has been negotiated that will cause the Sackler family, the owners of the Purdue Pharma family of companies, to pay an aggregate of \$6.5 billion dollars nationwide to resolve opioid-related claims against them and resolve Purdue Pharma's bankruptcy; and

WHEREAS, Chesterfield County has filed suit against Purdue Pharma and the Sackler family for their role in the distribution, manufacture, and sale of the pharmaceutical opioid products that have fueled the opioid epidemic that has harmed Chesterfield County; and

WHEREAS, Chesterfield County's suit seeks recovery of the public funds previously expended and to be expended in the future to abate the consequences and harms of the opioid epidemic; and

WHEREAS, Chesterfield County submitted a proof of claim in the bankruptcy and is thus entitled to vote on whether the bankruptcy court should accept or reject the associated bankruptcy plan; and

WHEREAS, Chesterfield County has approved and adopted the Virginia Opioid Abatement Fund and Settlement Allocation Memorandum of Understanding (the "Virginia MOU"), and affirms that this pending settlement with the Sackler family shall be considered a "Settlement" that is subject to the Virginia MOU, and shall be administered and allocated in the same manner as the opioid settlements entered into previously with the Distributors, Janssen, Teva, Allergan, Walmart, CVS, Walgreens, and Kroger; and

WHEREAS, Chesterfield County's outside counsel has reviewed the available information about the proposed settlement with the Sackler family and the Purdue Pharma bankruptcy plan and has recommended that the County accept

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the bankruptcy plan and participate in the settlement, in order to recover its share of the funds that the settlement would provide; and

WHEREAS, the County Attorney has reviewed the available information about the bankruptcy plan and proposed settlement and concurs with the recommendation of outside counsel;

NOW THEREFORE BE IT RESOLVED that the Chesterfield County Board of Supervisors, this 27th day of August, 2025, accepts the Purdue Pharma bankruptcy plan and approves of the County's participation in the proposed settlement of opioid-related claims against the Sackler family, and directs the County's outside counsel to execute the documents necessary to effectuate the County's participation in the settlement, including the required release of claims against the Sackler family, and accept the bankruptcy plan.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

2. Real Property Requests

a. Acceptance of Parcels of Land

1. Acceptance of a Parcel of Land Adjacent to Bellwood Road from Mount Sinai Properties South Richmond, LLC

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted the conveyance of a parcel of land containing 1.946 acres adjacent to Bellwood Road from Mount Sinai Properties South Richmond, LLC and authorized the County Administrator to execute the deed.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

2. Acceptance of a Parcel of Land Adjacent to Salem Church Road and Kingsland Road from Reedy Springs Development Co, LLC

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted the conveyance of a parcel of land containing 0.049 acres adjacent to Salem Church Road and Kingsland Road from Reedy Springs Development Co, LLC and authorized the County Administrator to execute the deed.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

3. Acceptance of Parcels of Land Adjacent to Nash Road from Virginia Commonwealth University Health System Authority

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted the conveyance of two parcels of land containing a total of 0.174 acres adjacent to Nash Road from Virginia Commonwealth University Health System Authority and authorized the County Administrator to execute the deed.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

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4. Acceptance of a Parcel of Land Adjacent to Branders Bridge Road From Chester Solar Technology Park, LLC

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted the conveyance of a parcel of land containing 0.069 acres adjacent to Branders Bridge Road from Chester Solar Technology Park, LLC and authorized the County Administrator to execute the deed.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

5. Acceptance of a Parcel of Land Adjacent to Bermuda Hundred Road from Peanut LLC

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted the conveyance of a parcel of land containing 0.671 acres adjacent to Bermuda Hundred Road from Peanut LLC and authorized the County Administrator to execute the deed.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

6. Acceptance of Parcels of Land Adjacent to Genito Road from Lattice Hall Development, LLC

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted the conveyance of parcels of land containing a total of 3.742 acres adjacent to Genito Road from Lattice Hall Development, LLC and authorized the County Administrator to execute the deed.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

7. Acceptance of Parcels of Land for Dutch Gap Parkway from Economic Development Authority

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted parcels of land totaling 6.74 +/- acres, at no cost, from the Economic Development Authority of the County of Chesterfield for the construction of Dutch Gap Parkway.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

b. Conveyance of Easements

1. Conveyance of an Underground Easement to Virginia Electric and Power Company at Fernbrook Park

On motion of Dr. Miller, seconded by Mr. Carroll, the Board authorized the Chairman of the Board of Supervisors and the County Administrator to execute an agreement with Virginia Electric and Power Company for an underground easement at Fernbrook Park.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

c. Requests to Quitclaim

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1. Request to Quitclaim a Portion of a Sewer Easement, Portions of Drainage Easements, all the Additional Sewer Easements, Water Easement, Sewer and Water Easement, Drainage Easements and Temporary Construction Easements Across the Properties Owned by Midlothian Depot, LLC

On motion of Dr. Miller, seconded by Mr. Carroll, the Board authorized the Chairman of the Board of Supervisors and the County Administrator to execute a quitclaim deed to quitclaim a portion of a sewer easement, portions of drainage easements, all the additional sewer easements, water easement, sewer and water easement, drainage easements and temporary construction easements across the properties owned by Midlothian Depot, LLC.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

d. Requests for Permission

1. Designation of Right of Way for Bus Loops Across L. C. Bird High School, Thomas Dale High School, Thomas Dale West High School, Formerly Chester Middle School, Manchester High School, and Cosby High School for VDOT Maintenance

On motion of Dr. Miller, seconded by Mr. Carroll, the Board approved the designation of right of way for bus loops across L. C. Bird High School, Thomas Dale High School, Thomas Dale West High School (formerly Chester Middle School), Manchester High School, and Cosby High School for VDOT maintenance and authorized the County Administrator to execute the designation.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

2. Request Permission to Allow a Private Water Service Within a Proposed Private Water Easement to Serve the Property at 2939 Kingsdale Road

On motion of Dr. Miller, seconded by Mr. Carroll, the Board granted permission to allow a private water service within a proposed private water easement to serve property at 2939 Kingsdale Road and authorized the County Administrator to execute the water connection agreement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

3. Acceptance and Appropriation of Grant Funds from the Commonwealth of Virginia Department of Criminal Justice Services for Continuation of Jail Mental Health Treatment Programs

On motion of Dr. Miller, seconded by Mr. Carroll, the Board authorized the County Administrator to accept and appropriate FY2026 Department of Criminal Justice Services grant funds in the amount of \$320,350 for the continuation of mental health care programs at the Chesterfield County Jail.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

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4. Acceptance and Appropriation of Grant Funds from the Federal Aviation Administration (FAA) and Virginia Department of Aviation (DOAV) for Utility Relocation Required for the Airport Runway Extension Project

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted and appropriated grant funds from the Federal Aviation Administration (FAA) in the amount of \$3,100,001 and Virginia Department of Aviation (DOAV) in the amount of \$130,525 for utility relocation required for the Airport runway extension project.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

5. Acceptance of Grants from the Virginia Department of Environmental Quality for Nutrient Credit Purchases

On motion of Dr. Miller, seconded by Mr. Carroll, the Board accepted two grants totaling \$1,000,000 from the Virginia Department of Environmental Quality (DEQ) and authorized the County Administrator to execute any necessary documents.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

6. Acceptance of a State Road

On motion of Dr. Miller, seconded by Mr. Carroll, the Board adopted the following resolution:

WHEREAS, the street described below is shown on a plat recorded in the Clerk's Office of the Circuit Court of Chesterfield County; and

WHEREAS, the Resident Engineer for the Virginia Department of Transportation has advised this Board the street meets the requirements established by the Subdivision Street Requirements of the Virginia Department of Transportation.

NOW, THEREFORE, BE IT RESOLVED, that this Board requests the Virginia Department of Transportation to add the street described below to the secondary system of state highways, pursuant to Sections 33.2-705 and 33.2-334, Code of Virginia, and the Department's Subdivision Street Requirements.

AND, BE IT FURTHER RESOLVED, that this Board guarantees a clear and unrestricted right-of-way, as described, and any necessary easements for cuts, fills and drainage.

AND, BE IT FURTHER RESOLVED, that a certified copy of this resolution be forwarded to the Resident Engineer for the Virginia Department of Transportation.

Project / Subdivision: Evergreen East Parkway Extension
Type Change to the Secondary System of State Highways: Addition
Reason for Change: New Street

Street Name and/or Route Number

Evergreen East Parkway, State Route Number 3970

From: Lucks Lane, (Route 720)

To: 0.16 miles south of Lucks Lane, (Route 720), a distance of 0.16 miles

Recordation Reference: Plat Book 293, Page 100

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Right of Way width (feet) = 84

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

7. Approval of FY2026 Chesterfield Community Services Board
Performance Contract

On motion of Dr. Miller, seconded by Mr. Carroll, the Board approved the FY2026 Performance Contract between the Chesterfield Community Services Board and the Virginia Department of Behavioral Health and Developmental Services.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

8. Approval of FY2029 and FY2030 Revenue Sharing Project Requests
and Adoption of Resolution

On motion of Dr. Miller, seconded by Mr. Carroll, the Board approved the FY2029 and FY2030 revenue sharing plan as shown on Attachment A of the agenda item.

And, further, the Board adopted the following resolution designating the county's revenue-sharing projects and commitment to the local match totaling up to \$10 million:

WHEREAS, Section 33.2-357 of the Code of Virginia permits the Commonwealth Transportation Board to make an equivalent matching allocation to any locality for designations by the governing body of up to \$5 million in funds received by it during the current fiscal year for use by the Commonwealth Transportation Board to construct, maintain or improve the highway systems within such county;

WHEREAS, the Virginia Department of Transportation has notified the county that \$5 million is the maximum amount of Chesterfield County funds that can be matched by the state during FY29 and FY30; and

WHEREAS, the Chesterfield County Board of Supervisors will make available up to \$5 million per year for the Chesterfield Revenue Sharing Program with the adoption of the FY29 and FY30 Appropriation Resolution and other Board action.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors appropriates and/or transfers, and hereby commits, up to \$5 million to be matched by the State for the FY29 and FY30 Chesterfield Revenue Sharing Program.

AND, BE IT FURTHER RESOLVED that the FY29 & FY30 matched funds be allocated, as awarded by the Virginia Department of Transportation, to the following projects: Alverser Drive/Old Buckingham Road Roundabout; Turner Road/Jessup Road Roundabout; Route 360 at Courthouse Road Intersection and Pedestrian Improvements; Dundas Road (Route 1 to Wentworth Street) Bike and Pedestrian Improvements; Salem Church Road/Kingsland Road Roundabout; Chester Road/Hamlin Creek Parkway Roundabout and Old Lane Improvement; and Old Hundred Road (Market Square Lane to Rose Glen Drive) Reconstruction.

AND, BE IT FURTHER RESOLVED that the County Administrator or designee is authorized to execute all agreements and/or addendums for any

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approved projects with the Virginia Department of Transportation.

And, further, the Board authorized the inclusion of the local match amount, up to \$10 million, in sources and uses in the Capital Improvement Program.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

9. Authorization to Award a Design-Build Construction Contract for the Otterdale Road at Swift Creek Drainage Project

On motion of Dr. Miller, seconded by Mr. Carroll, the Board authorized the Director of Procurement to award a best value design-build contract in the amount of \$37,873,000.30 to Kokosing Construction Company, Inc. and execute all necessary change orders up to the full amount budgeted for the project.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

10. Authorization to Proceed with Right-of-Way Acquisition for and Construction of the Dutch Gap Parkway Project

On motion of Dr. Miller, seconded by Mr. Carroll, the Board took the following actions for the Dutch Gap Parkway Project:

1. Authorized the County Administrator to enter into VDOT agreements/contracts, permits/mitigation agreements and surety agreements acceptable to the County Attorney; and
2. Authorized the County Administrator to proceed with right-of-way acquisitions, including the advertisement of eminent domain public hearings if necessary, and to accept the conveyance of right-of-way and easements that are acquired; and
3. Authorized the Chair of the Board of Supervisors and the County Administrator to execute easement agreements for relocation of utilities; and
4. Authorized the Procurement Director to proceed with the advertisement of a construction contract.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

11. Authorization to Renew a Healthcare Contract with Anthem Blue Cross and Blue Shield and Execute a Dental Care Contract with Delta Dental of Virginia for 2026 and Transfer Any Related Savings to the Healthcare Fund

On motion of Dr. Miller, seconded by Mr. Carroll, the Board authorized the County Administrator to renew the County's current contract with Anthem Blue Cross and Blue Shield (Anthem) for the fifth and final year of a 5-year contract and execute a new contract with Delta Dental of Virginia (Delta) for 2026, the first year of a 5-year contract, and authorized the County Administrator to transfer any overall FY2026 savings to the healthcare fund.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

15. Fifteen-Minute Citizen Comment Period on Unscheduled Matters

Mike Karabinos expressed his concerns relative to ICE operations in the county.

Jerry Turner expressed his concerns relative to the allocation of the \$300

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million in bond referendum funds to multiple transportation projects instead of just Powhite Parkway.

16. Deferred Items from Previous Meetings

There were no deferred items from previous meetings.

17. Zoning Requests

A. 23SN0129 - Genito Crossing Rezoning & Exceptions - Clover Hill

In Clover Hill Magisterial District, Genito Crossing Rezoning & Exceptions is a request to rezone from Community Business (C-3) and Corporate Office (O-2) to Residential Townhouse (R-TH) District plus conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map on 14.16 acres known as 11000 Hull Street Road. The property is proposed for a maximum development of 120 dwelling units. The Comprehensive Plan suggests the property is appropriate for Community Business and Medium-High Density Residential (4 to 8 dwellings per acre) use. Tax ID 744-685-2207-00001; 744-685-2207-00002.

Ms. Wilson introduced Case 23SN0129. She stated the applicant has withdrawn the request, and no further action will be taken by this Board.

B. 23SN0118 - Kingsley Village on Walmsley Rezoning & Exceptions - Clover Hill

In Clover Hill Magisterial District, Kingsley Village on Walmsley Rezoning & Exceptions is a request to rezone from Agricultural (A) to Residential (R-12) plus conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map on property fronting the south side of Walmsley Boulevard for approximately 500 feet beginning at the southwest intersection with Hull Street Road. The 16.89 acre property is proposed for a maximum development of 62 dwelling units. The Comprehensive Plan suggests the property is appropriate for Suburban Residential II use (2 to 4 dwellings per acre) and Neighborhood Business use. Tax IDs 759-691-part of- 4551 and 759-691-7548.

Ms. Wilson introduced Case 23SN0118. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

Jerry Turner expressed concerns relative to exiting the property onto Walmsley. He stated that one-way-in, one-way-out is a bad design.

There being no one else to speak to the issue, the public hearing was closed.

Ms. Schneider made a motion, seconded by Mr. Carroll, for the Board to approve Case 23SN0118 subject to the conditions in the staff report.

Questions and discussion ensued relative to traffic control measures at the intersection and the selling price of the homes. Both Jeff Geiger and John Costello answered questions from Board members.

Mr. Ingle called for a vote on Ms. Schneider's motion, seconded by Mr. Carroll, for the Board to approve Case 23SN0118 subject to the following conditions:

Proffered Conditions

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1. Conceptual Plan. The Conceptual Plan for the Property shall consist of the following, which are made a part of these proffered conditions by this reference thereto and shall be considered the Conceptual Plan.

A. The Textual Statement dated May 30, 2025.

B. Development of the Property shall generally conform to the Conceptual Plan (Exhibit A). titled “Kingsley Village Subdivision”, dated April 7, 2025, and prepared by Sekiv Solutions, with respect to the general layout of roads, lots, common area and open space. The layout on the Conceptual Plan is conceptual in nature and the information provided on the layout may vary based on the final subdivision plan depending on final engineering, environmental studies, other governmental approvals (i.e. VDOT) or as otherwise approved by the Planning Department at the time of plans review.

C. Conceptual Elevations, Exhibit B, Dated July 7, 2025 – Walmsley Conceptual Elevations. (P)

2. Utilities.

A. Public water and wastewater systems shall be used.

B. Public wastewater easements extending to the western property line shall be dedicated with subdivision recordation, to allow for future extensions to the west of the property.

C. Public wastewater lines, of sufficient depth to serve adjacent property and terminating with a manhole, shall be extended through these easements to the western property line. Location of the line shall be determined in coordination with the Utilities Department with best effort made to avoid wetlands impacts. (U)

3. Dedication. In conjunction with recordation of the initial subdivision plat or within sixty (60) days from a written request by the Transportation Department, whichever occurs first, forty-five (45) feet of right-of-way along the west side of Walmsley Boulevard, measured from the centerline of that part of the roadway immediately adjacent to the Property, shall be dedicated, free and unrestricted, to and for the benefit of Chesterfield County. (T)

4. Vehicular Access. Direct vehicular access to/from the property to Walmsley Blvd. shall be limited to no more than one (1) access, with the exact location and design approved by the Transportation Department in accordance with VDOT approvals. (T)

5. Transportation Improvements. In conjunction with initial development, the following road improvements shall be completed by the owner/developer of the Property or by others. Any modification to the alignment, design and length shall be approved by the Chesterfield County Transportation Department in accordance with VDOT approvals. If any of the road improvements identified below are provided by others, as determined by the Transportation Department, then the specific road improvement shall no longer be required. The timing for the provision of these improvements may be adjusted by a phasing plan approved by the Transportation Department at the time of plans review.

A. Construction of additional pavement along Walmsley Blvd. at the access onto Walmsley Blvd. to provide left and right turn lanes into this access.

B. Construction of VDOT standard sidewalk along Walmsley Boulevard for the entire property frontage.

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C. A. If required at the time of plans review by the County and approved by VDOT, construction of a VDOT standard crosswalk with high visibility pavement markings, signage, and/or other VDOT accepted improvements (excluding a pedestrian hybrid beacon/"HAWK" signal or similar structure as determined by the Transportation Department), with modifications approved by the Transportation Department, across Walmsley Boulevard to the existing shopping center.

D. Dedication to Chesterfield County, free and unrestricted, of any additional right of way and/or easements required for the improvements identified above. (T)

6. Density. A maximum of Sixty-Two (62) units shall be permitted on the property. (P)

7. Environmental Standards. The following environmental standards shall be provided. The Department of Environmental Engineering shall approve the exact design and implementation of these standards.

A. The maximum post-development discharge rate for the 100-year storm shall be based on the maximum capacity of the existing facilities downstream, and shall not increase the recorded and /or established 100-year backwater and /or floodplain. On-Site detention of the post-development 100-year discharge rate to below the pre-development 100-year discharge rate may be provided to satisfy this requirement.

B. No impervious areas shall sheet flow through the Wynterbrook subdivision to the east. (EE)

Subdivision Design Elements

8. Development Standards. Development of the homes shall be in general conformance with the architectural appearance as shown in Exhibit B. (P)

9. Streetscape. Street trees shall be installed along both sides of internal public roads. Unless otherwise permitted during plans review, street trees shall be large deciduous trees spaced generally 40 feet on center, except where there is conflict with utilities (above and underground), sightlines, easements and/or driveway areas. Trees shall either be installed within the right-of-way, or a maximum of 5 feet outside of the right-of-way. If not located within the right-of-way, the trees shall be maintained by the homeowners' association. Tree species shall be those species designated for use as a street tree in the Chesterfield County Plant Materials List. (P)

10. Internal Road Width. Internal roads shall be constructed with a minimum face-of-curb to face-of-curb width of thirty-two feet (32'). (P)

11. Sidewalks. Sidewalks shall be provided on both sides of internal public roads but shall not be required within the cul-de-sacs, unless required by VDOT for state acceptance, as generally illustrated on the Conceptual Plan. Unless otherwise approved by the Director of Planning at time of preliminary plat/construction plan, sidewalks shall be located within dedicated right-of-way. (P)

12. Driveways. All private driveways shall be constructed from concrete, exposed aggregate concrete, concrete pavers, stamped concrete, brick, or asphalt. (P)

13. Front walks: A minimum of a 3-foot-wide front walkway consisting of concrete, exposed aggregate concrete, concrete pavers, stamped concrete or

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brick shall be provided between the front entrance of each dwelling unit and adjacent drives, sidewalks or streets. (P)

14. Front Foundation Planting Beds: Foundation planting is required along the entire front façade of all units and shall extend along all sides facing a street. Foundation Planting beds shall be a minimum of four (4) feet wide from the unit foundation. Planting beds shall include medium shrubs, spaced a maximum of four (4) feet apart. The plant materials used should visually soften the unit corners and complement the architecture of the home at their mature sizes. Planting bed deviations may be approved by the Planning Department at time of plans review due to unique design circumstances. (P)

15. Fences. Chain link fences shall not be permitted.

A. Fencing shall be provided along the rear of lots 5, 6, and 7, as shown on the Conceptual Plan. The type and style of fencing shall be determined during the construction plan approval. (P)

16. Materials. Acceptable siding materials include brick, stone, masonry, fiber cement siding (such as HardiPlank, HardieShingle, and HardieTrim), premium vinyl with a minimum wall thickness of .044 inches, or engineered wood siding (such as LP SmartSide), or other comparable material as approved by the Planning Director at time of plans review. Dutch lap and plywood siding are not permitted. Other materials may be used for trim, architectural decorations, or design elements provided they blend with the architecture of the dwelling. (P)

17. Foundation Materials; On-Slab Foundation Treatments. The exposed portion of any foundation shall be of brick, brick veneer, synthetic stone, natural stone, stone veneer, other masonry material approved by the Planning Director, or combinations thereof. Synthetic or natural stucco foundations may be permitted for facades constructed of entirely stucco. Siding step down foundations shall be permitted on the side and rear elevations provided that a minimum eighteen (18) inches of exposed brick or stone shall be required. A maximum of two (2) steps shall be permitted on any elevation. If the dwelling unit is constructed on slab, a brick, brick veneer, synthetic stone, natural stone, stone veneer, other masonry material approved by the Planning Director, or combinations thereof shall be employed around the base of the dwelling unit a minimum eighteen (18) inches above grade as to give the appearance of a foundation. (P)

18. Variation. Buildings with the same front elevation may not be located adjacent to or directly across from each other on the same street. Variation in the front elevation to address the previous sentence may be accomplished by providing at least two (2) of the following architectural changes:

- (1) adding or removing a porch or covered entry or increasing or decreasing the length of the porch or entry;
- (2) varying the location and/or style of a front facing gable(s);
- (3) alternating the location of the garage;
- (4) providing different materials and/or siding types on at least 50% of the elevation;
- (5) providing a different roof type/roof line;
- (6) Providing varied color application;
- (7) Adding a third (3rd) enhanced feature to the garage door; or
- (8) Any other element of architectural variation as approved by the Director of Planning (P)

19. Roof Materials: Roofing materials shall be standing seam metal or dimensional architectural shingles or better with a minimum 30-year warranty.

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(P)

20. Porches and Stoops. Front stoops and porches shall be constructed with continuous foundation walls or with masonry piers to match the foundation of the home. (P)

21. Garages. Front loaded garages shall use an upgraded garage door. An upgraded garage door is any door with a minimum of two (2) enhanced features. Enhanced features shall include windows, raised panels, decorative panels, arches, hinge straps or other architectural features on the exterior that enhance the entry (i.e. decorative lintels, shed roof overhangs, arches, columns, keystones, eyebrows, etc.). Flat panel garage doors are prohibited. Front loaded attached garages shall be permitted to extend as far forward from the front line of the main dwelling as the front line of the front porch provided that the rooflines of the porch and garage are contiguous. Where the rooflines are not contiguous, garages shall be permitted to project a maximum of two (2) feet forward of the front line of the main dwelling, unless otherwise approved. (P)

22. Heating, Ventilation and Air Conditioning (HVAC) Units and Whole House Generators. Units adjacent to public right of way shall be screened from view by landscaping or low maintenance material, as approved by the Planning Department. (P)

23. Lamp Posts. One lamp post shall be provided for each lot. The style and color of the lamp post shall initially be consistent throughout the development. (P)

24. Open Space/Common Area. A minimum of a playground, open game field, and seated benches shall be provided with the exact design and locations to be determined during construction plan approval. A focal point area shall also be provided in common space at the front of the development, and shall be created with: (i) landscaping, and (ii) a minimum of one bench with hardscape below the bench (the hardscape area shall be two times the sitting area of the bench). Other amenities may include but are not limited to, a dog park, nature vista, picnic area, community gardens shall be permitted. Pedestrian scale amenities shall be developed concurrent with the phase of development that the amenities are intended to serve. A minimum of one (1) direct pedestrian connection between common area and the street labelled as "Road B" or "Road C" on Exhibit A shall be provided. (P)

25. CBU Lighting. Full cut-off, photocell-activated, minimum 70 CRI-rated LED luminaires shall illuminate areas within 20 feet of the cluster mailbox units (CBUs) with a minimum maintained illumination level of 0.5 foot-candles, as measured at grade, but this requirement may be modified to meet VDOT requirements. (Police)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

C. 23SN0135 - Felts Buffer Reduction - Midlothian

In Midlothian Magisterial District, Felts Buffer Reduction is a request for conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map in General Business (C-5) District on 4.65 acres known as 7929 Midlothian Turnpike. The Comprehensive Plan suggests the property is appropriate for Community Business use. Tax ID 760-705-4668.

Ms. Wilson introduced Case 23SN0135. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

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Mr. Ingle called for public comment.

Jerry Turner expressed concerns relative to the turn-in, which most trucks cannot make due to the curb. He stated the driveway needs to be widened and a sidewalk built.

There being no one else to speak to the issue, the public hearing was closed.

Dr. Miller made a motion, seconded by Ms. Schneider, for the Board to approve Case 23SN0135 subject to the conditions in the staff report.

Questions and discussion ensued relative to installing a turn lane.

Mr. Ingle called for a vote on Dr. Miller's motion, seconded by Ms. Schneider, for the Board to approve Case 23SN0135, subject to the following conditions:

Conditions

1. The Property shall be designed in general conformance with Exhibit A, Conceptual Plan entitled "Conceptual Site Plan". (P)
2. Notwithstanding the materials shown on Exhibit B, Conceptual Elevation, the façade materials along the lower portion of the proposed 40' X 240' building, illustrated in the darker color gray on Exhibit B, shall be constructed of a stone or stone faced material similar in color and design to the stone or stone faced material on the primary building on-site. (P)
3. Landscaping illustrated on Exhibit A in the rear portion of the site as well as along the front fencing shall conform to the requirements of Landscape C in the Zoning Ordinance. No existing trees along the rear portion of the property shall be removed unless dead or diseased. (P)
4. The maximum height of the proposed forty (40) feet X 240 feet building shall be no more than twenty-five (25) feet from the midpoint of the roof. (P)
5. The minimum building setback from the rear property line shall be twenty-five (25) feet. (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

D. 25SN1124 - Barrow Two Family Dwelling - Clover Hill

In Clover Hill Magisterial District, Barrow Two Family Dwelling is a request for conditional use to permit a two family dwelling and amendment of zoning district map in Residential (R-15) District known as 2401 Stuts Lane. The 0.44 acre property is developed with one single family dwelling and this request proposes one addition to the existing dwelling, which will create a two family dwelling. The Comprehensive Plan suggests the property is appropriate for Suburban Residential II use (2 to 4 dwellings per acre). Tax ID 751-690-6696.

Ms. Wilson introduced Case 25SN1124. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

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On motion of Ms. Schneider, seconded by Dr. Miller, the Board approved Case 25SN1124, subject to the following conditions:

Conditions

1. Occupancy. Occupancy of the addition containing a second dwelling unit shall be limited to the occupants of the principal dwelling unit, individuals related to them by blood, marriage, adoption, or guardianship, foster children, personal guests, or household employees. (P)
2. Deed Restriction. For the purpose of providing record notice, prior to the issuance of a certificate of occupancy for the addition containing a second dwelling unit, a deed restriction shall be recorded setting forth the limitation in Condition 1. The deed book and page number of this restriction and a copy of the restriction as recorded shall be submitted to the Planning Department. (P)
3. Two Family Dwelling Location, Size, and Construction Limitations. The following limitations shall apply to the addition containing the second dwelling on the Property:
 - a. The second dwelling unit shall be located on the Property as generally depicted in Exhibit A.
 - b. The second dwelling unit shall be no larger than 800 square feet.
 - c. A manufactured home shall not be permitted on the Property. (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

E. 25SN1149 - Chalkley Road Parcel Subdivision Exceptions - Bermuda

In Bermuda Magisterial District, Chalkley Road Parcel Subdivision Exceptions is a request for conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map in an Agricultural (A) District known as 10801 Chalkley Road. The 17.3 acre property is proposed for a maximum development of 2 dwelling units. The Comprehensive Plan suggests the property is appropriate for Residential use (1.5 dwellings per acre or less). Tax ID 781-659-6051.

Ms. Wilson introduced Case 25SN1149. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Ingle, seconded by Dr. Miller, the Board approved Case 25SN1149, subject to the following conditions:

Conditions

1. Road Frontage and Lot Width. At time of subdivision plat approval, the minimum road frontage and lot width for the parcel identified as "Lot 2" on Exhibit A shall be 175 feet (P).
2. Setback Requirements. At time of subdivision plat approval, the existing dwelling on the parcel identified as "Lot 1" on Exhibit A shall be setback from the front property line (ultimate right-of-way of Chalkley Road) sixty-five (65) feet as shown on Exhibit A. The existing accessory structure nearest Chalkley Road on the parcel identified as "Lot 1" on Exhibit A shall be setback from the front property line (ultimate right-of-way of Chalkley Road) forty-seven (47) feet as shown on Exhibit A. (P)

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Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

F. 22SN0117 - Old Bermuda Hundred Road Rezoning, Exceptions & Utility Waiver - Bermuda

In Bermuda Magisterial District, Old Bermuda Hundred Road Rezoning, Exceptions & Utility Waiver is a request to rezone from Agricultural (A) to General Industrial (I-2) with conditional use planned development to permit exceptions to ordinance requirements plus an exception to Section 18-60 of the Utility Ordinance for connection to the public wastewater system and amendment of zoning district map on 4.79 acres fronting approximately 345 feet on the south side of Old Bermuda Hundred Road, 1,375 feet west of Lawing Drive. The Comprehensive Plan suggests the property is appropriate for Corporate Office/Research & Development/Light Industrial uses. Tax ID 805-648-Part of 3522.

Ryan Ramsey introduced Case 22SN0117. He stated the Planning Commission and staff recommended approval of Request I, subject to the conditions in the staff report. He further stated the Planning Commission recommended approval of Request II, but staff recommended denial of Request II.

Mr. Ingle called for public comment.

Dr. Korzyk expressed concerns relative to preventing pollution.

There being no one else to speak to the issue, the public hearing was closed.

Dean Hawkins, representing the applicant, responded to concerns raised by the citizen speaker and questions from Mr. Ingle.

On motion of Mr. Ingle, seconded by Mr. Carroll, the Board approved Case 22SN0117, Requests I and II subject to the following conditions:

Proffered Conditions

Request I – Rezoning to I-2 plus Conditional Use Planned Development

1. Conceptual Plan. Development of the Property for any I-2 use or a contractor's office, shop and storage yard use shall generally conform to the Conceptual Plan (Exhibit A), dated May, 14 2025, prepared by Dean E. Hawkins and attached hereto as "Exhibit A" with respect to the general layout of buildings, parking, outside storage, screening, and access. The layout on the Conceptual Plan is conceptual in nature and may vary based on the final site plan depending on final engineering and environmental studies or as otherwise approved by the Planning Commission at the time of plans review. All other permitted uses for the Property shall conform to Ordinance requirements and shall not be subject to Exhibit A. (P)

2. Uses.

a. The following Light Industrial (I-1) uses shall be permitted. Uses permitted with restrictions shall be permitted with the restrictions provided below:

i. Access (public or private) to accommodate nonresidential development in an A, O, C or I district or used for office, business or industrial purpose.

ii. Athletic field publicly operated.

iii. Automobile storage lot, as restricted:

1. Use is accessory to warehouse or mini-warehouse facility;

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2. Outdoor vehicle maintenance does not occur;
3. Vehicle sales does not occur;
4. Use is not required to be screened from view of I-2 or I-3 property or existing outside storage areas on adjacent property;
5. Use is screened from view of roads or adjacent property, other than the property identified in below, by:
 - a. building layout;
 - b. durable architectural walls or fences constructed of comparable materials to, and design compatible with, the warehouse building(s); or
 - c. berms or land forms that are part of the natural terrain or integrated to appear as though they are part of the natural terrain; and
6. Use is screened from view of adjacent R, R-TH, RMF, O, MH or I-1 property, or adjacent A property designated on the comprehensive plan for R, R-TH, R-MF, A, O, MH or I-1 uses. Screening is accomplished by a compound design where warehouse buildings block the view of the area. Openings between buildings are permitted to accommodate underground utilities, fire code requirements, and unique site constraints provided views through the openings is screened through the use of screening walls constructed of comparable materials to, and design compatible with, the warehouse building(s).
 - iv. Catering establishment.
 - v. Cold storage.
 - vi. Communication office.
 - vii. Communication small cell.
 - viii. Communication studio and station.
 - ix. Construction building/trailer, temporary, as restricted:
 1. Use is incidental to construction activities taking place on the premises; and
 2. Building or trailer is removed upon completion or abandonment of construction activities.
 - x. Data services office.
 - xi. Dining, outside, as restricted:
 1. Use is accessory to a permitted or restricted use;
 2. Area conforms to the parking setback requirements of the district;
 3. Area is located within courtyard areas, covered sidewalks, or patios generally abutting the use to which it is accessory;
 4. Area is delineated by buildings, fences, landscaping, other similar barriers, or a combination thereof, all of which are compatible with the design and architecture of the principal use; and
 5. Pedestrian ways are not obstructed.
 - xii. Freight forwarding, packaging and crating services, excluding truck terminal.
 - xiii. Machine shop.
 - xiv. Motion picture production.
 - xv. Moving company.
 - xvi. Office.
 - xvii. Paper conversion to paperboard products.
 - xviii. Parking lot, park and ride.
 - xix. Park, public.
 - xx. Recreational equipment, parking and storage, as restricted:
 1. Use is accessory to warehouse or mini-warehouse facility;
 2. Equipment maintenance does not occur;
 3. Equipment sales does not occur;
 4. Use is not required to be screened from view of I-2 or I-3 property or existing outside storage areas on adjacent property;
 5. Use is screened from view of roads or adjacent property, other than the property identified in f. below, by:

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- a. building layout;
 - b. durable architectural walls or fences constructed of comparable materials to, and design compatible with, the warehouse building(s); or
 - c. berms or land forms that are part of the natural terrain or integrated to appear as though they are part of the natural terrain; and
6. Use is screened from view of adjacent R, R-TH, RMF, O, MH or I-1 property, or adjacent A property designated on the comprehensive plan for R, R-TH, R-MF, A, O, MH or I-1 uses. Screening is accomplished by a compound design where warehouse buildings block the view of the area. Openings between buildings are permitted to accommodate underground utilities, fire code requirements, and unique site constraints provided views through the openings is screened through the use of screening walls constructed of comparable materials to, and design compatible with, the warehouse building(s).
- xxi. Recycling and processing of any material permitted to be manufactured in the district, except paper (see Paper Recycling).
 - xxii. Rental of health equipment.
 - xxiii. Rental of party equipment.
 - xxiv. Rental of small home hardware, tool and equipment.
 - xxv. Retail sale of goods or articles manufactured or assembled as accessory to a permitted use, as restricted:
 - 1. Sales area does not exceed 30% of gross floor area of primary use up to maximum of 2,000 gross square feet.
 - xxvi. Satellite dish.
 - xxvii. School, art; business; dance; martial arts; music; vocational.
 - xxviii. Sign, changeable copy, as restricted:
 - 1. Except as stated herein, sign complies with Article IV.
- Division 6. [Signs];
- 2. Sign is not located on A, MH, R, R-TH or R-MF property unless the property is occupied by a church, place of worship, public park, county governmental facility, or school or the sign serves as the residential community entrance sign at the primary entrance into a development having community open space and recreational facilities;
 - 3. Sign is not incorporated into a nonconforming sign;
 - 4. In projects with outparcels, signs are spaced 30 feet apart;
 - 5. Changeable copy is integrated into a permitted freestanding sign per 19.1-276.B.;
 - 6. Except for an outdoor advertising sign which is governed by Sec. 19.1-279, changeable copy shall be designed as an integral component of a monument sign compatible with the architectural style of the principal building which it serves provided that if the principal building does not conform to the architectural standards of the Design District in which located, the director of planning may approve a monument sign that has an alternative architectural style. For a permitted outdoor advertising sign, changeable copy is incorporated into sign structure meeting sign design requirements of Sec. 19.1-279;
 - 7. Changeable copy for outdoor advertising sign which is governed by Sec. 19.1-279 shall be limited to computer controlled variable message electronic sign (EMC);
 - 8. Except for an outdoor advertising sign which is governed by Sec. 19.1-279, a permitted freestanding sign area may be increased by 25 percent for the purpose of including manual changeable copy, provided the area by which the sign is increased is used solely for such changeable copy. The area of manual changeable copy is limited to one-half or less of the total area of the sign face; and
 - 9. Fixed message electronic display shall be limited to one-third of permitted sign face and shall default to blank copy if there is a malfunction in the device; and
 - 10. For an outdoor advertising sign which is governed by Sec.

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19.1-279, or where the only changeable copy is computer controlled variable message electronic sign (EMC) copy, the area of changeable copy may include entire sign face.

xxix. Sign, computer controlled variable message electronic (EMC), as restricted:

1. Sign complies with restrictions of changeable copy sign and outdoor advertising sign as applicable;

2. Sign is not incorporated into a nonconforming sign or a sign containing manual copy;

3. Except for a permitted outdoor advertising sign or a sign for a county governmental facility, sign is not located in Belmont Turner Area Central, Bon Air Special Design District, Chester Area Central, Midlothian Area West or Route 10 Area North as shown on the zoning map;

4. Excluding copy that includes only current time of day or outdoor temperature; interval of copy change for a permitted EMC sign is limited as follows:

a. 5 minutes for property located in A, MH, R, R-TH, R-MF districts, if such sign is the freestanding sign for property occupied by a church, place of worship, public park or school. Any other EMC located in A, MH, R, R-TH, R-MF districts shall only be permitted by conditional use and may be subject to more restrictive standards than this section;

b. 1 minute for property located outside of a mixed-use or nonresidential community in O, C and I districts or an outparcel within such a community;

c. 10 seconds for mixed-use or nonresidential community sign; or

d. 10 seconds for outdoor advertising sign;

5. Excluding copy that includes only current time of day, date or outdoor temperature, copy changes simultaneously;

6. Copy does not move, or give the illusion of movement, such as, blink, scroll, flash, spin, fly in/out, scintillate or similar effects; however, copy may fade as transition to next copy;

7. Copy is limited to a still image or lines of text;

8. Excluding outdoor advertising signs greater than 200 square feet (s/f) in area, displays shall be high resolution having no larger than 12 mm pixel pitch. Outdoor advertising signs greater than 200 s/f and less than 400 s/f shall have a maximum pixel pitch of 16 mm. Outdoor advertising signs greater than 400 s/f shall have a maximum pixel pitch of 20 mm;

9. Sign defaults to blank copy if there is a malfunction in device;

10. Sign does not display coordinated messages which are intended to be continued on opposite sign face, other signs on-site or signs off-site;

11. A photocell or other device is used that automatically adjusts brightness according to ambient conditions; and

12. Brightness does not exceed 0.3 foot candles above ambient light as measured at a distance in feet that is the square root of the sign area in square feet multiplied by 100 (Distance from Sign= $\sqrt{\text{Sign Area Sq. ft} \times 100}$).

xxx. Travel agency.

xxxi. Warehouse, accessory to permitted use.

xxxii. Warehouse, principal use.

xxxiii. Wholesale house and distributor, excluding greenhouse or plant nursery.

b. In addition, the following General Industrial (I-2) uses shall be permitted. Uses permitted with restrictions (identified with an (R) designation below) shall be permitted with the restrictions defined in the Ordinance:

i. Boat sales, service, repair and rental.

ii. Building material sales yard, excluding concrete mixing.

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- iii. Contractor's office, shop and storage yard.
 - iv. Electric power transforming station.
 - v. Fuel storage and distribution, petroleum gas or liquid with storage less than 18,000 gallons or cubic feet.
 - vi. Furniture and fixture manufacturing, from raw materials.
 - vii. Greenhouse, wholesale.
 - viii. Mass transportation station/terminal.
 - ix. Metal products manufacturing, fabricated products not otherwise listed.
 - x. Motor vehicle rental.
 - xi. Plant nursery, wholesale.
 - xii. Public address system, outside in conjunction with primary use.
 - xiii. Recreational equipment, parking and storage.
 - xiv. Rental of heavy equipment.
 - xv. Sign manufacturing.
 - xvi. Storage, outside, as restricted (R):
 - 1. Unless restrictions of a specific use address outside storage screening requirements, the area is screened from view of adjacent property on which such uses are not permitted, A property designated on the comprehensive plan for R, R-TH, R-MF, A, O, MH or I-1 uses, and roads that are designed to accommodate through traffic movements; and
 - 2. View is minimized from limited access roads through site or architectural design, topography, landscaping, setbacks or other features.
 - xvii. Truck rental.
 - xviii. Truck terminal. (P)
3. Dedication. Prior to final site plan approval, or within sixty (60) days from a written request by the Transportation Department, whichever occurs first, forty-five (45) feet of right-of-way along the south side of Old Bermuda Hundred Road, measured from the centerline of the part of the roadway immediately adjacent to the Property, shall be dedicated, free and unrestricted, to and for the benefit of Chesterfield County. (T)
4. Access. Direct vehicular access to the property from Old Bermuda Hundred Road shall be limited to the two (2) existing accesses. Any modification/relocation of each vehicular access shall be approved by the Transportation Department. (T)
5. Road Improvements. In conjunction with initial development or prior to issuance of a certificate of occupancy, the owner/developer shall be responsible for construction of additional pavement along Old Bermuda Hundred Road at each approved access to provide a separate right turn lane, if warranted based on the Chesterfield Department of Transportation (CDOT) standards and dedicate to Chesterfield County, free and unrestricted, any additional right-of-way (and/or easements) required for the improvements. (T)
6. Lighting. Owner shall install full cut-off, pole-mounted, minimum 70 color rendering index (CRI)-rated light emitting diode (LED) luminaires to illuminate sidewalk and parking with a minimum maintained illumination level of 1.0 foot-candle, as measured at grade. Light poles shall not be placed within twenty (20) feet of large maturing shade trees. (Police)
7. Stormwater and Drainage Requirements. Prior to land disturbance permit issuance, for the drainage area leading to the southernmost outfall location only, the applicant will demonstrate that peak flow from the 100-year post-developed storm runoff does not exceed the peak flow from the 100-year predeveloped storm runoff. On-site detention may be provided to satisfy this requirement. (EE)

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8. Building Design. Any building shall be comprised of detailed, fenestrated facades with a combination of colors and building materials. All overhead doors shall be located and oriented to the rear of the building. Building elevations and details shall be submitted to the Planning Department for review and approval prior to site plan approval. (P)

9. Screening for the Contractor's Storage Yard. Screening for the contractor's storage yard use shall conform to the fence improvements shown on Exhibit A. A six (6) foot tall durable opaque fence, with a design to be approved prior to site plan approval, shall be installed in the locations shown on the Exhibit A. No screening shall be required along the eastern zoning boundary, south of the proposed access from Permill Springs Drive. (P)

10. Side Yard Setback along Western Property Line. A side yard setback of ten (10) feet with Perimeter Landscape B for any building, parking and any outside storage area shall be provided outside of the existing access easement along the western property line, shown on Exhibit A. (P)

11. Removal of Building Encroachments. Prior to site plan approval or within six (6) months of zoning approval, whichever occurs first, the existing building encroachments along the western property line (GPIN 804-649-3538) that are shown on Exhibit A, shall be removed from the Property. (P)

12. Utility Connection - Public Water. The Property shall connect to the County's public water system. (U)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

18. Public Hearings

A. To Consider Comprehensive Plan Amendment to Chapter 13 - Transportation Regarding the Thoroughfare Plan East/West Freeway

Transportation Director Chessa Walker introduced the public hearing.

Mr. Ingle called for public comment.

Mike Uzell spoke in favor of the amendment.

Dr. Korzyk asked if VDOT concurred with the removal of the East/West Freeway.

Jerry Turner expressed concerns relative to looking to the future of the county before eliminating roads.

RenaE Eldred stated she thinks it is time for the amendment, and she called for civility and promotion of useful ideas.

Jeri Ann Munson encouraged the Board to follow the Planning Commission's recommendation to amend Chapter 13. She asked the Board to look at the Comprehensive Plan with citizen input as to what they would like to see.

There being no one else to speak to the issue, the public hearing was closed.

Mr. Carroll shared his reasoning for supporting the removal of the East/West Freeway from the Comprehensive Plan and made a motion for the Board to approve the proposed amendment.

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Mr. Ingle seconded Mr. Carroll's motion and shared his reasoning for supporting the removal of the East/West Freeway.

Additional discussion ensued.

Mr. Ingle called for a vote on Mr. Carroll's motion, seconded by Mr. Ingle, for the Board to approve the proposed amendment to the Thoroughfare Plan and related items in the Comprehensive Plan Chapters 5, 10, and 13 (25PJ0103).

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

(It is noted that both redlined and clean versions of Chapters 5, 10 and 13 are filed with the papers of this Board.)

B. To Consider Comprehensive Plan Amendment – Northern Route 10 Corridor Plan

Dagny Oakley introduced the public hearing.

Mr. Ingle called for public comment.

Dr. Korzyk expressed concerns relative to Cogbill Road, the development of Turner Road extension, congestion on Route 10, and Jessup Road. He encouraged development of secondary roads.

Dave Stritzinger inquired about what an RPA is.

Jerry Turner supported the addition of sidewalks and asked the Board to hold developers accountable.

Renae Eldred agreed with Mr. Turner regarding making developers do what the plan says.

There being no one else to speak to the issue, the public hearing was closed.

On motion of Mr. Holland, seconded by Mr. Carroll, the Board approved the Northern Route 10 Corridor Plan (24PJ0111).

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

C. To Consider the Exercise of Eminent Domain for the Acquisition of Permanent Water and Temporary Construction Easements for the Stillbrook, Poplar Ridge and Old Carrollton Road Waterline Improvements Project - Clover Hill

Lynn Snow introduced the public hearing.

Mr. Ingle called for public comment.

Jerry Turner spoke in support of proceeding with the exercise of eminent domain.

There being no one else to speak to the issue, the public hearing was closed.

On motion of Ms. Schneider, seconded by Dr. Miller, the Board authorized the exercise of eminent domain, including the filing of a certificate of take, for the acquisition of permanent water and temporary construction easements for the Stillbrook, Poplar Ridge and Old Carrollton Road Waterline Improvements

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Project, so that construction can proceed on schedule, for the following property owner: Victoria Elizabeth Keszey, Parcel ID #40700216900000, 11448 Stillbrook Road.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- D. To Consider the Quitclaim of a Portion of County Right-Of-Way known as Spencer Creek Place, Adjacent To Property Owned By Courthouse Landing, LLC, and the Request to Vacate a Portion of a Drainage Easement within Courthouse Road Extended and Dedication of Variable Width Drainage Easement - Dale

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Holland, seconded by Dr. Miller, the Board authorized the Chairman of the Board of Supervisors and the County Administrator to execute a quitclaim deed to quitclaim a portion of right-of-way known as Spencer Creek Place, adjacent to property owned by Courthouse Landing, LLC.

And, further, the Board adopted the following ordinance:

AN ORDINANCE whereby the COUNTY OF CHESTERFIELD, VIRGINIA ("GRANTOR") vacates to COURTHOUSE LANDING VA, LLC, a Florida limited liability company ("GRANTEE") a portion of a 60' drainage easement within Courthouse Road Extended And Dedication of Variable Width Drainage Easement, DALE Magisterial District, Chesterfield County, Virginia, as shown on a plat thereof duly recorded in the Clerk's Office, Circuit Court, Chesterfield County, Virginia in Plat Book 47, at Page 17.

WHEREAS, COURTHOUSE LANDING VA, LLC, a Florida limited liability company petitioned the Board of Supervisors of Chesterfield County, Virginia to vacate a portion of a 60' drainage easement within Courthouse Road Extended And Dedication of Variable Width Drainage Easement, DALE Magisterial District, Chesterfield County, Virginia more particularly shown on a plat of record in the Clerk's Office of the Circuit Court of said County in Plat Book 47, Page 17, by YOUNGBLOOD, TYLER & ASSOCIATES, dated AUGUST 16, 1984. The portion of easement petitioned to be vacated is more fully described as follows:

A portion of a 60' drainage easement within Courthouse Road Extended And Dedication of Variable Width Drainage Easement, the location of which is more fully shown on a plat by TOWNES SITE ENGINEERING, dated JUNE 10, 2025, a copy of which is attached hereto and made a part of this Ordinance.

WHEREAS, notice has been given pursuant to Section 15.2-2204 of the Code of Virginia, 1950, as amended, by advertising; and,

WHEREAS, no public necessity exists for the continuance of the portion of easement sought to be vacated.

NOW THEREFORE, BE IT ORDAINED BY THE BOARD OF SUPERVISORS OF CHESTERFIELD COUNTY, VIRGINIA:

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That pursuant to Section 15.2-2272 of the Code of Virginia, 1950, as amended, the aforesaid portion of easement be and is hereby vacated.

This Ordinance shall be in full force and effect in accordance with Section 15.2-2272 of the Code of Virginia, 1950, as amended, and a certified copy of this Ordinance, together with the plat attached hereto shall be recorded no sooner than thirty days hereafter in the Clerk's Office, Circuit Court, Chesterfield County, Virginia pursuant to Section 15.2-2272 of the Code of Virginia, 1950, as amended.

The effect of this Ordinance pursuant to Section 15.2-2274 is to destroy the force and effect of the recording of the portion of the plat vacated. This Ordinance shall vest fee simple title to the portion of easement hereby vacated in the underlying landowner within Courthouse Road Extended subplat, free and clear of any rights of public use.

Accordingly, this Ordinance shall be indexed in the names of the GRANTOR and GRANTEE, or their successors in title.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- E. To Consider the Lease of Space on the County's Cellular Tower at 4000 Cougar Trail - Bermuda

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

Dr. Korzyk spoke of the direct health hazard of cell towers.

There being no one else to speak to the issue, the public hearing was closed.

On motion of Ms. Schneider, seconded by Mr. Carroll, the Board approved the lease of space on the county's cellular tower at 4000 Cougar Trail to Cellco Partnership d/b/a Verizon Wireless.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

- F. To Consider the Abandonment of State Route 741 - Matoaca

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

Jerry Turner asked the Board to consider unintended consequences.

There being no one else to speak to the issue, the public hearing was closed.

Questions and discussion ensued.

Dr. Miller made a motion, seconded by Ms. Schneider for the Board to adopt a resolution abandoning State Route 741.

Mr. Carroll stated he would like the opportunity to talk to the landowners before making a decision.

Additional questions and discussion ensued.

Dr. Miller withdrew his motion, and Ms. Schneider withdrew her second.

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On motion of Mr. Carroll, seconded by Dr. Miller, the Board deferred the matter to its regularly scheduled meeting on September 17, 2025.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

G. To Consider the Abandonment of State Route 1406 - Bermuda

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

Bonnie Bowen Harrison spoke in opposition to the abandonment.

Jerry Turner stated it sounds like VDOT is trying to get out of doing its job, and the Board should take some time to think about this matter, too.

There being no one else to speak to the issue, the public hearing was closed.

On motion of Dr. Miller, seconded by Mr. Carroll, the Board deferred the matter to its regularly scheduled meeting on September 17, 2025.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

H. To Consider the Abandonment of a Portion of Walthall Center Drive, State Route 962 - Bermuda

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Carroll, seconded by Ms. Schneider, the Board adopted the following resolution:

WHEREAS, a sketch has been provided to the Board of Supervisors of Chesterfield County depicting State Route 1406 to be abandoned from the Secondary System of State Highways; and,

WHEREAS, pursuant to a resolution of this Board, dated July 23, 2025, the required notices of the County's intent to abandon State Route 1406, identified as segment A-B, 0.10 miles on the attached sketch, have been given in that: on July 25, 2025, a notice was posted in at least three places along State Route 1406, and on August 13, 2025, and on August 25, 2025, a notice was published in the Richmond Times-Dispatch having general circulation within the County announcing this Public Hearing to receive comments concerning the proposed abandonment; and on July 24, 2025, notice was sent to the Commissioner of Highways; and,

WHEREAS, after considering all evidence available, this Board is satisfied that no public necessity exists for the continuation of State Route 1406, identified as segment A-B, 0.10 miles, since it serves no public necessity and is no longer necessary as part of the Secondary System of State Highways.

NOW, THEREFORE BE IT RESOLVED, that the Chesterfield County Board of Supervisors hereby abandons the above described segment of State Route 1406, and removes it from the Secondary System of State Highways, pursuant

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to Section 33.2-909, Code of Virginia, 1950, as amended.

AND, BE IT FURTHER RESOLVED, that a certified copy of this resolution be forwarded to the Chesterfield Residency Engineer for the Virginia Department of Transportation at 3301 Speeks Drive, Midlothian, VA 23112.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

19. Fifteen-Minute Citizen Comment Period on Unscheduled Matters

There were no speakers on unscheduled matters at this time.

20. Adjournment

A. Adjournment and Notice of Next Scheduled Meeting of the Board of Supervisors

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adjourned at 9:12 p.m. to the regularly scheduled Board of Supervisors meeting on September 17 at 2 p.m. in Room 502 of the County Administration Building.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.